

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

MARC M. MOSZKOWSKI,

Plaintiff,

vs.

Case No.: 2020 CA 001021

RUSTIN R. HOWARD

Division: E

Defendant

and

THOMAS J. JOHNSON,

Defendant

PLAINTIFF MOSZKOWSKI'S MOTION FOR CONTINUANCE

Plaintiff MARC M. MOSZKOWSKI (hereinafter referred to as "MOSZKOWSKI"), Pro Se, respectfully petitions this Court not to dismiss this case and to continue or postpone the hearing scheduled for December 10th, 2021, at 3:00 PM, until a date not yet determinable but posterior to a hearing closely linked to this case in this same Circuit Court, said hearing having been recently continued quite unfortunately to a yet undetermined date.

This case is part of a legal imbroglio, for which a timeline of events is presented below for justification and explanatory purposes, with a conclusion regarding this motion in Section L on page 8.

A. On April 3rd, 2018, DeepGulf, Inc. and Toke Oil and Gas, Inc. filed against MOSZKOWSKI Complaint 2018 CA 000543 in the Circuit Court in and for Escambia County, Florida¹.

B. On June 25th, 2018, MOSZKOWSKI removed the State Court action to the United States District Court for the Northern District of Florida, Pensacola Division, under 28 U.S.C. §1332, pursuant to the provisions of 28 U.S.C. §1441(b), in that the case was a civil action between a citizen of a state and a citizen of a foreign state and the matter in controversy exceeded the sum of \$75,000².

Furthermore, MOSZKOWSKI stated in his Notice of Removal that Plaintiff Toke Oil and Gas, Inc. had been fraudulently joined and should be disregarded for purposes of determining jurisdiction under 28 U.S.C. §1332 and 28 U.S.C. §1441(b) because as a fictitious entity the citizenship of Toke Oil and Gas, Inc., if any, should be disregarded, and there existed no claim upon which Toke Oil and Gas, Inc. could possibly recover against MOSZKOWSKI. During the

¹ In what appears for all purposes to be a serious preliminary conflict of interest, MOSZKOWSKI owns nearly 50% of DeepGulf, Inc. and was one of Toke Oil and Gas S.A.'s only two directors when the company still existed.

² U.S. District Court case number 3:18-cv-1466.

next three years of litigation in U.S. District Court Plaintiff DeepGulf, Inc. never raised any objection to the removal or its justifications whatsoever, and, despite MOSZKOWSKI's repeated demands, the Plaintiff has never produced to this day any proof of the current existence, validity, and good standing of Toke Oil and Gas, be it Inc. or S.A.

C. On July 2nd, 2020, the U.S. District Court ordered a Final Judgement, which was entered in favor of MOSZKOWSKI on 8 out of the 9 counts of DeepGulf, Inc.'s complaint (Counts II to IX).

Only Count I was entered in favor of Plaintiff DeepGulf, Inc. However, MOSZKOWSKI has strenuously interjected since that:

a. Count I was and always had been moot, since it related to property of which MOSZKOWSKI had already assigned his partial interest to Plaintiff DeepGulf, Inc. as many as thirteen years before the Complaint was filed, as was clearly stated in the very recital of Count I itself, and

b. The Judgement for Count I³ was in discrepancy with the specifics of ownership and thus was unenforceable since the Court ordered that DeepGulf, Inc. be made by said judgement the sole owner of patents for which not only had MOSZKOWSKI already assigned his own partial interest to Plaintiff DeepGulf, Inc. thirteen years prior, but also there existed, and always had existed, another partial owner, wholly unrelated to the case, who had not agreed to, and had not been consulted about, the transfer of his partial interest to DeepGulf, Inc.. The identity of this third party was well known to DeepGulf, Inc., since his name clearly appears at the top of each and every patent in question.

³ On June 17th, 2020, near the end of the bench trial, the U.S. District Court Judge tasked the Counsel for DeepGulf, Inc., Braden K. Ball, Jr., with drafting the judgement for Count I. MOSZKOWSKI's repeated objections as to the impropriety of the draft were left unheeded.

D. However, on July 31st, 2020, DeepGulf Inc. and extinct foreign Toke Oil and Gas S.A. frivolously appealed to the United States Court of Appeals for the 11th Circuit⁴.

E. On August 10th, 2020, in reference to the above-mentioned Florida State Circuit Court and U.S. District Court cases, MOSZKOWSKI filed complaint 2020 CA 001021 in the Circuit Court in and for Escambia County, Florida, against DeepGulf, Inc.'s Directors Rustin R. Howard and Thomas J. Johnson, for one count of malicious prosecution, one count of abuse of process, one count of breach of contract, nine counts of fraud, one count of civil conspiracy, and one count of perjury.

F. On September 1st, 2020, DeepGulf, Inc.'s Directors Rustin R. Howard and Thomas J. Johnson filed a Motion to Dismiss Case 2020 CA 001021.

⁴ U.S. Court of Appeals for the 11th Circuit Docket # 20-12897. On September 28th, 2020, DeepGulf, Inc. filed a Brief of Appellant; on October 13th, 2020, the Court of Appeals filed a Jurisdictional Question, with responses by the parties filed on October 27th, 2020; on November 25th, 2020, MOSZKOWSKI filed his Brief of Appellee.

G. Quite remarkably, on May 5th, 2021, although only at the prompting of the Court of Appeals, more than three years after the original filing of complaint 2018 CA 000543 and nearly a year after judgement had been rendered, the U.S. District Court remanded the case to State Court in Pensacola, arguing that the diversity of citizenship was destroyed because both MOSZKOWSKI and Toke Oil and Gas S.A. were alien citizens. MOSZKOWSKI insistently protested again that extinct Toke Oil and Gas S.A. had no standing whatsoever to sue, but to no avail. Again, that was three years after filing and a year after judgement had been rendered, and DeepGulf, Inc. had never raised any objection to the removal to U.S. Court and the reasons therefor, among which was the lack of legal existence of Toke Oil and Gas, Inc. or S.A..

H. On June 3rd, 2021, DeepGulf, Inc. and extinct Toke Oil and Gas, S.A. frivolously filed in the Circuit Court in and for Escambia County, Florida, amended complaint 2018 CA 000543, to which one more defendant was joined (a citizen of Florida, who was later voluntarily

dismissed on October 12th, 2021⁵), and two Counts were added, both not only plainly uninformed but also absurd.

I. On June 23rd, 2021, MOSZKOWSKI filed a Motion to Strike Complaint 2018 CA 000543 as a Sham.

J. On August 5th, 2021, DeepGulf, Inc. requested from the Circuit Court in and for Escambia County, Florida, a hearing on MOSZKOWSKI's Motion to Strike Complaint 2018 CA 000543 as a Sham. The hearing was first scheduled for November 9th, 2021, then was rescheduled to November 10th, 2021, and then again to November 30th or December 3rd, 2021, but both latter dates were rejected by DeepGulf, Inc.'s Counsel⁶. Consequently, the hearing has been tentatively postponed to 2022 at the earliest, but no date has been determined yet.

K. On September 24th, 2021, in Case 2020 CA 001021, this Court ordered a Notice of Lack of Prosecution and a Motion to Dismiss and

⁵ MOSZKOWSKI has objected that the additional defendant had been fraudulently joined for the sole purpose of trying to destroy again the diversity of citizenship.

⁶ MOSZKOWSKI's opponents in both Circuit Court cases are closely associated and are represented by the same Counsel, Braden K. Ball, Jr, Esq., who was also Counsel in the U.S. District Court and the Court of Appeals cases.

Notice of Hearing if no record activity occurred within 60 days following the Notices, which MOSZKOWSKI understands to be before November 23rd, 2021.

The November 23rd deadline happened to be 13 days after the hearing scheduled to consider MOSZKOWSKI's Motion to Strike Complaint 2018 CA 000543 as a Sham, and MOSZKOWSKI planned to resume activity in related Case 2020 CA 001021 immediately following the Court's decision regarding his Motion to Strike Case 2018 CA 000543 as a Sham.

L. Therefore, since the hearing for related Case 2018 CA 000543 has been unfortunately postponed to a yet undetermined date in 2022, MOSZKOWSKI hereby respectfully petitions this Court not to dismiss this action and to continue or postpone the hearing for Case 2020 CA 001021 accordingly, until a date posterior to the hearing for Case 2018 CA 000543, to which this case is closely related.

Signed, this 1st day of November, 2021

Marc Moszkowski, Pro Se

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Le Verdos

83300 Châteaudouble, France

A handwritten signature in black ink, appearing to read "M. Moszkowski". The signature is written in a cursive, flowing style.

CERTIFICATE OF SERVICE

I hereby certify that, on this 1st day of November, 2021, a copy of this motion has been provided to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

A handwritten signature in black ink, appearing to read "M. Moszkowski". The signature is written in a cursive, flowing style.